

Sonu v. U.P.P.C.L. and others

High Court of Judicature at Allahabad · Division Bench · 11 April 2023 · Writ - C No. 35011 of 2013 · **Writ dismissed for want of prosecution.**

HEADNOTE

The Allahabad High Court dismissed Sonu's writ against U.P.P.C.L. for want of prosecution after none appeared even on revised call. Earlier Benches had connected the petition with Writ-C No. 53470 of 2012, referring to Clause 8(1)(b)(iii) of the U.P. Electricity Supply Code, 2005, and stayed coercive steps on a citation dated 19 June 2013. The electricity dispute was not decided on merits.

FACTUAL SUMMARY

Sonu sued U.P. Power Corporation Ltd. over coercive steps on a citation dated 19 June 2013, saying similar writs were pending. On 2 July 2013 the Court connected the petition with Writ-C No. 53470 of 2012, referring to Clause 8(1)(b)(iii) of the U.P. Electricity Supply Code, 2005 as quoted in the petition, and stayed coercive action. After extensions of time and of the stay, and a 2023 adjournment, none appeared for the petitioner even on revised call.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

The writ was dismissed for want of prosecution when none appeared for the petitioner even in the revised call. Connecting the petition with Writ-C No. 53470 of 2012 by reference to Clause 8(1)(b)(iii) of the U.P. Electricity Supply Code, 2005, and staying coercive steps on the 19 June 2013 citation, were only interlocutory listing directions; the electricity dispute was not decided on merits. ¶ 4

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance

The Allahabad High Court dismissed Sonu's writ against U.P.P.C.L. for want of prosecution after none appeared even on revised call. Earlier Benches had connected the petition with Writ-C No. 53470 of 2012, referring to Clause 8(1)(b)(iii) of the U.P.. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CITATION DATED 19.6.2013 AND OF CLAUSE 8(1)(B)(III) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Clause 8(1)(b)(iii) was cited only to connect this petition with another writ; coercive-step stay was interlocutory. Writ later dismissed for want of prosecution. ¶ 1-4